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IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON, Defendant.	MOTION TO CLASSIFY AS “PRIVATE” THE RESPONSE TO DEFENDANT’S MOTION TO APPEAR AT ALL IN-PERSON PROCEEDINGS IN CIVILIAN CLOTHING AND WITHOUT RESTRAINTS Case No. 251403576 Honorable Tony F. Graf, Jr.
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On October 13, 2025, this Court emailed counsel an Interim Order ordering the State and the Utah County Sheriff’s Office (“Sheriff’s Office”) to respond to Defendant’s Motion to Appear in Civilian Clothing and Without Restraints. The October 13th Interim Order permits the Sheriff’s Office to file its response “as a

sealed document” if it contains “secure information.” *See* October 13, 2025

Interim Order.

The response does include information from the Court’s Security Director, Chris Palmer, regarding specific security measures in this case. The Court should therefore limit access to the response.

Although the Court’s October 13th Interim Order contemplated classifying as “sealed,” a response that contains “secure information.” The State and the Sheriff’s Office believe that the more apt classification should be “private,” because not even counsel for the parties can assess a “sealed” court record without a court order. *See* Utah R. Jud. Admin. 4-202.03(2). Therefore, pursuant to Rule 4-202.04 of the Utah Rules of Judicial Administration, the State and the Sheriff’s Office request that the Court classify the response as “private.”

On October 14, 2025, this Court entered on the docket a modified Interim Order ordering the State the Sheriff’s Office to respond to Defendant’s motion. The docketed October 14 Interim Order omits the reference to allowing the response to be filed under seal. The State and the Sheriff’s Office believe that this omission was a mere oversight. But even if this omission were intentional, the Court should nevertheless classify the response as “private” because it contains secure information that might endanger “personal and public safety” if disclosed. *See* Utah R. Jud. Admin. 4-202(2)(B) (recognizing that interests of

“personal and public safety” justify restricting access to certain court records).

DATED this 20th day of October 2025.

JEFFREY S. GRAY
Utah County Attorney

/s Benjamin C. Van Noy
Benjamin C. Van Noy
Christopher D. Ballard
Deputy Utah County Attorneys
*Attorneys for Plaintiff and
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CERTIFICATE OF SERVICE

On October 20, 2025, a true and correct copy of the foregoing MOTION TO CLASSIFY AS “PRIVATE” THE RESPONSE TO DEFENDANT’S MOTION TO APPEAR AT ALL IN-PERSON PROCEEDINGS IN CIVILIAN CLOTHING AND WITHOUT RESTRAINTS was filed via the Court’s electronic filing system, which served a copy on all counsel of record.

/s Christopher D. Ballard